

Kaushal Kishore v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 14 November 2011 · Writ-C No. 64632 of 2011 · **Writ disposed; apply to Superintending Engineer for consideration.**

HEADNOTE

A writ seeking a Sukh Rahat Package tubewell connection, the licensee having treated the dispute as load reduction under clause 4.41 of the Supply Code, 2005, is not decided on the writ side; the consumer is to apply to the Superintending Engineer for consideration.

FACTUAL SUMMARY

Kaushal Kishore petitioned the Allahabad High Court that the Executive Engineer had not given him a tubewell connection under the Sukh Rahat Package. The licensee treated the controversy as load reduction, said to be covered by sub-clause (f)(ii) of clause 4.41 of the Uttar Pradesh Electricity Supply Code, 2005. Counsel for both sides were heard at the admission stage.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.41(f)(ii)

tubewell connection / load reduction — writ vs Superintending Engineer

HOLDING

A writ against the Executive Engineer's refusal of a Sukh Rahat Package tubewell connection, the licensee having treated the matter as load reduction under sub-clause (f)(ii) of clause 4.41, cannot be resolved on the writ side. The consumer is to apply to the Superintending Engineer within seven days of the certified copy; the Superintending Engineer is to consider the cause as early as possible and within one month of the application. ¶ 1

FLAG clause recited as Sub-Clause f (ii) under Clause 4.41; numbering as in the order

PRINCIPLE TAGS

relegate-to-statutory-remedy A writ seeking a Sukh Rahat Package tubewell connection, the licensee having treated the dispute as load reduction under clause 4.41 of the Supply Code, 2005, is not decided on the writ side; the consumer is to apply to the Superintending Engineer for consideration. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO A TUBEWELL CONNECTION UNDER THE SUKH RAHAT PACKAGE

Merits of the Executive Engineer's refusal left to the Superintending Engineer. ¶ 1

NOT DECIDED — WHETHER THE DISPUTE IS COVERED BY CLAUSE 4.41(F)(II) AS LOAD REDUCTION

The court recorded the licensee's position but did not decide it. ¶ 1